



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White, Planner II
Subject: PUDC-24-145 / 4614 E Pershing Blvd / 201 Agreement
Date: September 9, 2024

Background:

The item for consideration is an exception to Cheyenne Water and Sewer District intergovernmental agreement (201 IGA) to implement the 1982 Wastewater Facilities Master Plan. This is approved by resolution.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral: September 9, 2024
- Public Services Committee: September 17, 2024
- Final Consideration: September 23, 2024

Planning Commission Recommendation:

The Planning Commission heard this item at their September 3, 2024, meeting and voted to recommend the Governing Body approve this exception.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Resolution
2. Planning Commission Staff Report

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION GRANTING AN EXCEPTION TO THE '201 AGREEMENT' FOR THE OWNER OF THE PROPERTY LOCATED AT 4614 EAST PERSHING BOULEVARD TO ALLOW INSTALLATION OF A SMALL WASTEWATER SYSTEM (SEPTIC SYSTEM)."

WHEREAS, on April 25, 1983, the City of Cheyenne ("City"), the County of Laramie ("County"), the City of Cheyenne Board of Public Utilities ("BOPU"), and the South Cheyenne Water and Sewer District ("District") entered into an agreement entitled "Memorandum of Agreement: Intergovernmental Contract Agreeing to Participate in the Implementation of the Findings of the 201 Facilities Plan Final Report for the City of Cheyenne, the South Cheyenne Water and Sewer District and Laramie County";

WHEREAS, the April 25, 1983 agreement is commonly referred to as the "201 Agreement";

WHEREAS, the 201 Agreement defines the respective responsibilities and obligations of the signatory governmental entities with respect to the implementation of the "201 Facilities Plan" that was created in response to the requirements of Section 201 of the Federal Water Pollution Control Act;

WHEREAS, one of the principal purposes of the 201 Agreement is to ensure that wastewater (sewage) generated in the areas immediately surrounding the corporate limits of the City of Cheyenne would preferentially be disposed of through the sanitary sewer systems operated by BOPU;

WHEREAS, the 201 Agreement defines the "service area boundary" sometimes referred to as the "sewerable boundary" or "201 Area" as the area that "can be provided with Municipal Sewage Treatment Services via gravity flow";

WHEREAS, Applicant is requesting a 201 Exception as owner of a residential property which lies within the City of Cheyenne jurisdiction as well as within the 201 Area, specifically Parcel Identification Nos. 14662742101000 which is 0.35-acres in size; legally described as Lots 33 & 34, Sunnyside Addition, 4th Filing, Resub TR 137-140;

WHEREAS, the Applicant seeks to install a small wastewater system at a cost of approximately \$14,500.00 rather than pay an estimated \$316,650.00 cost to extend sanitary sewer service approximately 330 linear feet to the Applicant's property;

WHEREAS, pursuant to Section 3.4.(d) of the 201 Agreement, Laramie County government agreed to work with the City-County Health Unit to "ensure that no new permits for small wastewater treatment systems [septic systems] within the service area boundary that are inconsistent with the Facility Plan are issued";

WHEREAS, exceptions for the installation of small wastewater treatment systems (septic systems) may be granted pursuant to Section 4.1 of the 201 Agreement;

WHEREAS, the Applicants have applied for an exception pursuant to Section 4.1.(d) of the 201 Agreement which provides as follows:

"4.1 Exceptions can be granted for the following reasons . . . (c) The exception will alleviate a clearly demonstrable hardship and compliance with the Facility Plan will exacerbate this hardship. A hardship will be determined based upon a cost/effectiveness study of sewer service provision to the property seeking the exception.; and

WHEREAS, on September 3, 2024, the City Planning Commission recommended that the Governing Body grant the 201 Exception based on a finding that a demonstrable hardship exists under Section 4.1.(c) of the 201 Agreement to permit the installation of a small wastewater system on the subject property.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, the City of Cheyenne hereby consents to the granting of an exception pursuant to Section 4.1.(c) of the 201 Agreement to permit installation of a small wastewater system, as the exception will alleviate a clearly demonstrable hardship and compliance with the Facility Plan will exacerbate this hardship.; and

BE IT FURTHER RESOLVED, that the City of Cheyenne hereby consents to the granting of an exception pursuant to Section 4.1.(c) of the 201 Agreement to permit installation of a small wastewater system, subject to the following condition: (1) The property will be required to connect to sanitary sewer should it become readily available.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2024.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE PLANNING COMMISSION SEPTEMBER 3, 2024 STAFF REPORT

FILE: **PUDC-24-145: 4614 E Pershing Blvd - 201 Exception**

REQUEST: 201 Exception to allow installation of a small wastewater system.

LOCATION: East of US-30 and north of and adjacent to E Pershing Blvd.

APPLICANT: James O'Connor

OWNER: James O'Connor

ZONING: County MU, Proposed to be MUR within the City

CASE PLANNER: Connor White, Planner II



RECOMMENDED MOTION(s):

Move to recommend the City Council **approve** the exception to the 201 Facilities Plan requirement for City sewer service for a single-family home and permit installation of a small wastewater system, subject to Staff's recommended conditions.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- Cheyenne Municipal Code Chapter 1.16 (Annexation and Infrastructure Improvements)
- Cheyenne Municipal Code Chapter 13.12 (Sewer System)
- 201 Intergovernmental Agreement to participate in the implementation of the 201 Facilities Plan Final Report for the City of Cheyenne, the South Cheyenne Water and Sewer District, and Laramie County (1983) (IGA)
- 201 Facilities Plan Final Report (1982)
- Plan Cheyenne

The request for an exception must be submitted to the Planning Commission for review. After Commission review, the exception would be approved or denied by the City Council. If the property seeking the exception is outside the Corporate Limits of the City and inside the 201 Service Area Boundary, then County Commissioner approval is also required.

BACKGROUND:

In 1982 the City, County, and south Cheyenne Water and Sewer District executed an intergovernmental agreement to implement the 1982 Wastewater Facilities Master Plan. The plan and the IGA were intended to satisfy the Federal Clean Water Act requirements and to protect the safety and quality of the region's groundwater from pollution, specifically from concentrated septic systems.

The IGA requires connection to sewer systems for development of properties lying within the Urban Service Area identified in the Plan. The Facilities Plan defines the Urban Service Area as the area where "Municipal Sewerage Treatment services can be provided via gravity flow" [Section 1.0, Definitions of the IGA]. The IGA further states that the City of Cheyenne is to limit the use of on-site wastewater treatment systems within the Urban Service Area; this would include septic systems and package wastewater treatment plants. The IGA states that the City and County will not approve any development which is inconsistent with the Facility Plan unless granted an exception pursuant to Sections 4.0 to 4.7 of the IGA.

The applicant applied for a permit to allow a small wastewater system. The permit was denied. After denial, the applicant was eligible to apply for an exception pursuant to the IGA. The request for an exception must be submitted to the Planning Commission for review. After Commission review, the exception would be approved or denied by the City Council and the County Commissioners if the property seeking the exception is outside the Corporate Limits of the City and inside the 201 Service Area Boundary.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Mixed-use Commercial	County MU	Residential
North	Mixed-use Commercial	County MU	Residential
South	Urban Residential	MR Medium-density Residential	Residential
East	Mixed-use Commercial	County MU	Residential
West	Mixed-use Commercial	County MU	Residential

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to approve the exception, the Commission must make the following findings per Sections 4.0 to 4.7 of the 201 IGA. A detailed analysis is below:

Section 4.0: EXCEPTIONS FOR DEVELOPMENT THAT IS NOT CONSISTENT WITH THE PROPOSED FACILITY PLAN:***4.1 Exceptions can be granted for the following reasons:***

(a) The proposed exception conforms with the criteria for exceptions in The City of Cheyenne Annexation Policies.

(b) The exception can be shown not to be detrimental to the public health, safety and welfare [sic].

(c) The exception will alleviate a clearly demonstrable hardship and compliance with the Facility Plan will exacerbate this hardship. A hardship will be determined based upon a cost/effectiveness study of sewer service provision to the property seeking the exception.

(d) The exception demonstrates substantial compliance with the proposed Facility Plan.

Reason (a): This property is currently in the process of being annexed into City limits and does not have sanitary sewer readily available. Off-site sanitary sewer main extension would be required. The closest sewer main is at the intersection of Split Rail Court and Grasslands Parkway to the south. This proposal seeks an exception from tying into the sanitary sewer system for an existing single-family home.

Reason (b): The property owner has worked with Laramie County Health and a local contractor to design a small wastewater system that would meet all requirements and not be detrimental to the public health, safety and welfare.

Reason (c): The property is already developed with a single-family home and the purpose of seeking the exception is to allow the continued usage of the property as a single-family home. No new construction or development of the parcel is proposed. The property does not have sanitary sewer readily available. The closest sewer main is at the intersection of Split Rail Court and Grasslands Parkway to the south. The applicant has provided a cost estimate to extend the sewer main compared to installing the proposed small wastewater system. The estimated cost to tie into the City sanitary sewer system would be approximately \$316,650.00. This cost does not include the design, survey or system development fees to connect into the system. The cost to install the

proposed drain field would cost approximately \$14,500.00. Extending the sewer main and tying into the City sewer system would be a hardship based upon a cost/effectiveness study.

Reason (d): The facility would maintain the principal goal of the IGA – that is to prevent the environmental pollution of the land. The applicant has worked with Laramie County Health and a local contractor to design a new small wastewater system that would meet all requirements.

4.2. Exceptions may only be considered if the proposal has been denied due to non-conformance with the proposed Facility Plan.

The applicant applied for a permit to allow a small wastewater system on June 13, 2024. The permit was denied on June 13, 2024. After denial, the applicant was eligible to apply for an exception pursuant to the IGA. The exception request was filed with the Cheyenne-Laramie County Health Department on June 13, 2024 and forwarded to the City for review and consideration on August 13, 2024.

4.3. The request for exception must be submitted to the Planning Commission for review.

This proposal is being submitted to the Planning Commission.

4.4. After Planning Commission review, the exception will be approved or disapproved by: (a) The City Council if the property seeking exception is within the Corporate Limits; (b) The City Council and County Commissioners if the property seeking exception is outside the Corporate Limits and inside the Service Area Boundary.

The property seeking an exception is currently being annexed into the City limits of the City of Cheyenne, and the exception will be submitted to the City Council after the Planning Commission review.

4.5 (Due to a formatting error in the original Agreement, there is no Section 4.5)

4.6. The replacement of an existing on-site wastewater treatment system on a property that is neither contiguous with the Cheyenne Corporate Limits nor within the DISTRICT's boundaries will not require an exception under this Agreement.

This Section is not applicable to this proposal.

4.7. The installation of a new on-site wastewater system on a single lot within the Service Area Boundary that is not contiguous with the Cheyenne Corporate Limits nor within the DISTRICT's boundaries will not require an exception under this Agreement, provided that the lot meets all the requirements of the Subdivision Regulations and any other requirements of this Agreement and was platted prior to the effective date of this Agreement.

This Section is not applicable to this proposal.

RELEVANT PLANCHEYENNE POLICIES

The following PlanCheyenne policies are related to this project:

Foundation 1—Growing as a Community of Choice
Policy 1.1.C: Regional Coordination on Land Use and Development Issues.

Foundation 7—Developing in a Fiscally Responsible Way
Principle 7.1: Our community will coordinate and plan for growth regionally to ensure efficient and cost-effective services and utilities.
Principle 7.2: The Cheyenne Area will provide adequate public facilities and services for current and future residents in a fiscally responsible manner.

The IGA was created to coordinate regionally on environmental health. The proposed small wastewater system provides a service commonly available to parcels that do not have readily available sewer. This is an existing single-family home that would need to extend the sewer infrastructure at their own cost which would not be cost effective as it would only serve their property. The exception request **complies** with the goals of PlanCheyenne.

CONCLUSION:

Staff's analysis is that the application meets the requirements to qualify for a 201 Exception with conditions.

ALTERNATIVES:

1. Recommend the Governing Body approve the exception as submitted by the applicant.
2. Recommend the Governing Body approve the exception subject to Staff's recommended conditions (**Staff Recommendation**).
3. Recommend denial of the exception based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the item until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

The Planning Commission may modify staff's recommended conditions, delete conditions, add conditions, or decide contrary to Staff's recommendation. In the event conditions are modified, the conditions shall relate to applicable review criteria. In the event that the Planning Commission acts contrary to staff's recommendation, the Commission shall cite specific reasons (based on the review criteria) for a recommendation to approve or deny.

STAFF'S RECOMMENDATION(s):

Staff recommends approval of the exception for Lots 33 & 34, Sunnyside Addition, 4th Filing, Resub TR 137 - 140 to allow a small wastewater system subject to the following condition:

1. The property will be required to connect to sanitary sewer should it become readily available.

ATTACHMENTS:

1. Applicant Exception Request Letter
2. Cheyenne-Laramie County Health Denial Letter
3. Submitted Cheyenne-Laramie County Health Application

Exception to the 201 Agreement

James and Lydia O'Connor

We come before you to request an exception to the "201 Facilities Memorandum of Agreement" between Cheyenne City and Laramie County. Section 4 of the Memorandum of Agreement permits exceptions for a number of reasons. We request an exception on the following grounds:

- 1) Section 4.1.(b) states: the proposed exception can be shown not to be detrimental to the public health, safety and welfare.

We worked closely with Laramie County Environmental Health and a local contractor to devise a plan and design for a new leach field system that would meet all standards.

- 2) Section 4.1.(c) states: the exception will alleviate a clearly demonstrable hardship and compliance with the Facility Plan will exacerbate this hardship. A hardship will be determined based upon a cost/effectiveness study of the sewer service provision to the property seeking exception.

Connecting to the closest available sewer line would bankrupt our family. Cheyenne Board of Public Utilities calculated the cost to connect to the closet sewer line available to our property. As shown in the estimate attached, the cost to hook into city would be \$316,650 in addition to the costs for design, surveying and construction. This amount is more than our property is worth and clearly puts our family in an extreme hardship.

In contrast, the quote from Miller Industrial Services, LLC estimates that an improved septic system on our property would cost \$14,500.

The cost differential between \$316,650 (plus costs for design, surveying and construction) and \$14,500 is extreme. It would be impossible for our family to financially afford connecting to city sewer. For these reasons, we respectfully request that our exception be approved.

Thank you,

James and Lydia O'Connor

4614 E Pershing Blvd

Cheyenne, WY 82001

508-405-6109

jaoconnorusa@gmail.com



Cheyenne
**Laramie County
Public Health**

June 13, 2024

James O'Connor
4614 E Pershing
Cheyenne, WY 82001

Dear Mr. O'Connor,

On June 13, 2024, our office received your application for a permit to install a small wastewater system on a parcel of property located in Sunnyside Addition 4th Filing Tracts 137-140, Section 27, Township 14, Range 66. After careful review of your application this office cannot issue a small wastewater permit at this time for the following reasons:

1. Installation of a new septic system on a property which is contiguous to the City of Cheyenne is prohibited in the Service Area boundary and is not in compliance with the "201 Facilities Plan" or the "201" agreement.

In order to appeal the Cheyenne Laramie County Public Health final decision; you must file a written request for hearing with the Laramie County Commissioners within sixty (60) days of receipt of this denial notification. Paperwork must be filed with the Cheyenne and Laramie County Planning Commissions, County Commissioners and City Council and request made to be placed on their agenda. At those meetings, you must demonstrate to the governing bodies that your request for exception should be granted by meeting the criteria for exception. Your application for the small wastewater system will be held until we hear from you.

If you have any questions concerning anything in this letter, please feel free to contact me at 100 Central Ave or call at 633-4090.

Sincerely,

Tiffany Gaertner, Supervisor, Division of Environmental Health





Cheyenne
**Laramie County
Public Health**

cc: Kathy Emmons, Director, Cheyenne Laramie County Public Health
Laramie County Attorney
Laramie County Development Office
Laramie County Planning
Laramie County Commissioners
Cheyenne Planning Commission
Cheyenne Mayor's Office
Chairman, Cheyenne City Council
DEQ, Water Quality Division

[Handwritten signature]

Theresa Gaudin, Director, Division of Environmental Health

MILLER INDUSTRIAL SERVICES, LLC

4178 CR 207
CARPENTER, WY 82054
(307)649-2289

Estimate

Date	Estimate #
2/18/2024	2669

Name / Address
James O'Connor 4614 E. Persing BLVD Cheyenne, WY 82001

Project

Description	Qty	Rate	Total
Install a new drain field (bed type) approximately 1200 sf.		14,500.00	14,500.00
Thank you for the opportunity to submit a bid on your project. Call if you have questions. Brant		Total	\$14,500.00



Board of Public Utilities

Cheyenne Water and Sewer Departments

2416 Snyder Ave.
Cheyenne, Wyoming 82001
(307) 637-6460
www.cheyennebopu.org

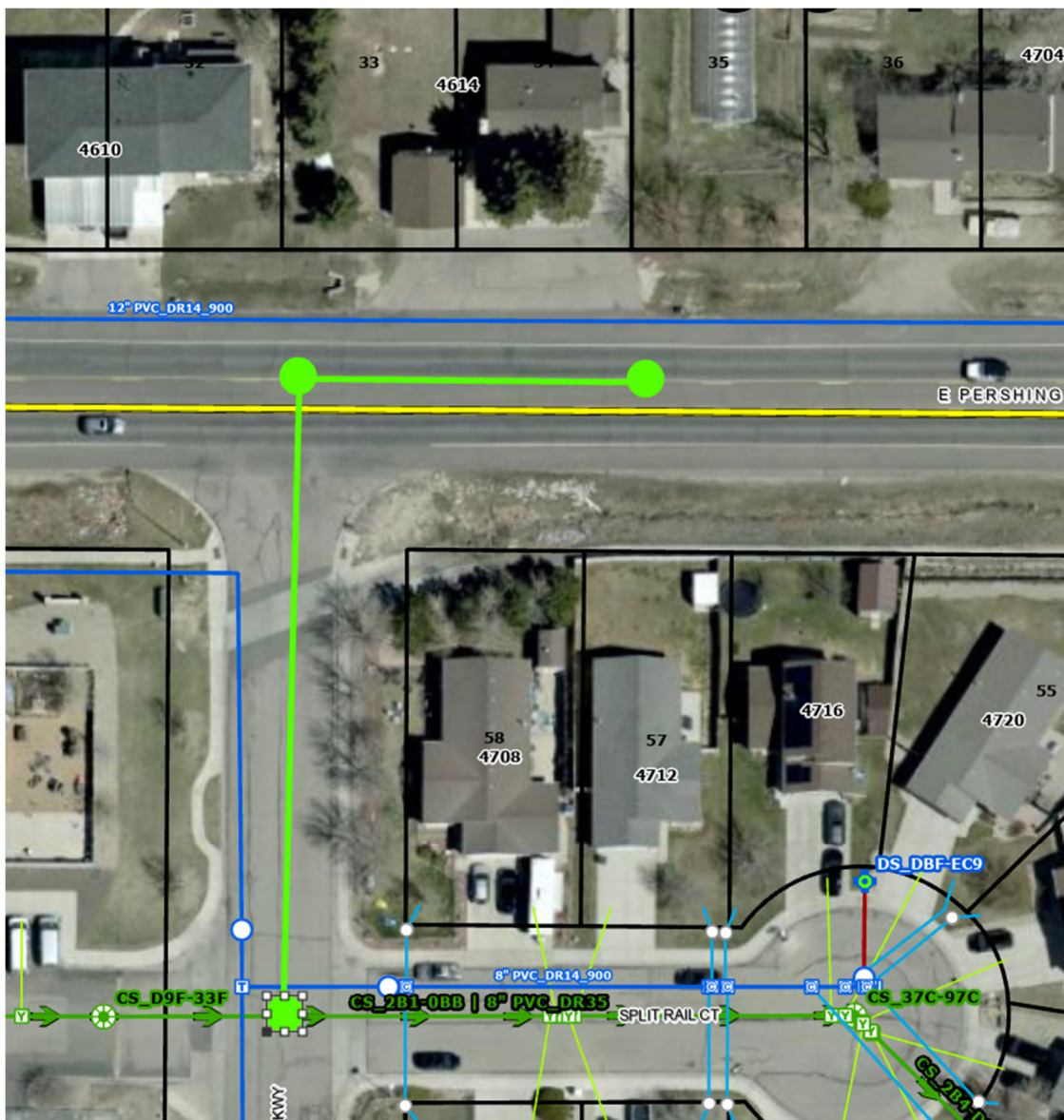
June 19, 2024

James O'Connor
4614 E Pershing Blvd
Cheyenne, WY 82001

RE: Sewer Extension Cost

Mr. O'Connor

As requested, we have evaluated the cost to extend BOPU sanitary sewer main to serve your property at 4614 E Pershing Blvd. There is currently a sewer main in the intersection of Grassland Parkway and Split Rail Court that could be extended as shown below.



The estimated cost for the construction of the sewer main is shown below and does not include the cost for survey and design. The cost for design and construction of the sewer main would be your responsibility.

Item	Unit	Quantity	Unit Price	Extended Price
Mobilization	LS	1	\$ 25,000.00	\$ 25,000.00
Bonds & Insurance	LS	1	\$ 5,000.00	\$ 5,000.00
Stormwater Control	LS	1	\$ 5,000.00	\$ 5,000.00
Site Safety & Traffic Control	LS	1	\$ 10,000.00	\$ 10,000.00
Remove Asphalt Pavement	SY	400	\$ 18.00	\$ 7,200.00
Remove Concrete Valley Pan	SF	270	\$ 22.00	\$ 5,940.00
Bypass Pumping	LS	1	\$ 8,000.00	\$ 8,000.00
8" PVC sewer main	LF	330	\$ 175.00	\$ 57,750.00
R&R 48" dia manhole, 10'-15' deep	EA	1	\$ 18,000.00	\$ 18,000.00
New 48" dia manhole, 10'-15' deep	EA	2	\$ 15,000.00	\$ 30,000.00
Import Backfill	CY	1000	\$ 55.00	\$ 55,000.00
Asphalt Paving 6"	SY	400	\$ 180.00	\$ 72,000.00
Crushed Base 6"	SY	430	\$ 17.00	\$ 7,310.00
Concrete Valley Pan 8"	SF	270	\$ 35.00	\$ 9,450.00
Pavement Striping (double yellow)	LF	250	\$ 4.00	\$ 1,000.00
Total				\$ 316,650.00

If you have any questions or require additional information, please contact me at any time.

Respectfully

Frank A Strong IV

Digitally signed by Frank A Strong IV
DN: C=US, E=fstrong@cheyennebopu.org, O=City
of Cheyenne BOPU, CN=Frank A Strong IV
Date: 2024.06.19 08:10:32-06'00'

Frank A Strong IV, P.E.
Engineering and Water Resources Division Manager
307.637.6416
fstrong@cheyennebopu.org